

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINDA OLUOCH AND NECRECIA FLETCHER
Plaintiff(s)

Venue: Plaintiffs designate Kings
County as the Venue Where
The Acts and Omissions
Occurred
Index No.:

-against-

CITY OF NEW YORK AND PO JEFFREY PELOSO
Defendant(s)

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
Friday, February 23, 2024

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY:



Michael H. Joseph, Esq.,
18 West 33rd Street, Suite 400
New York, NY 10001
Tel: 212-858-0503
Email: michael@newyorktriallawyers.org

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINDA OLUOCH AND NECRECIA FLETCHER

Plaintiff(s)

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK AND PO JEFFREY PELOSO

Defendant(s)

JURY TRIAL DEMANDED

Plaintiffs, by and through their undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for their complaint against Defendants state:

1. At all relevant times herein, plaintiff, Linda Oluoch was and is a resident of the State of New York, County of Kings.
2. At all relevant times herein, plaintiff, Necrecia Fletcher was and is a resident of the State of New York, County of Kings.
3. At all relevant times herein, defendant the City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. At all relevant times herein, Defendant P.O. Jeffrey Peloso was and is a resident of the State of New York, County of Kings.
5. On or about December 2, 2023 and at all times relevant herein, P.O. Jeffrey Peloso was a duly sworn police officer employed by the City of New York.

6. On or about December 2, 2023 and at all times relevant herein, P.O. Jeffrey Peloso was acting under the color of law and acting in the course and scope of his employment with City of New York.

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

7. Plaintiffs repeat, reiterate, and reallege each and every allegation contained above with the same force and effect as if fully set forth herein at length
8. On or about December 2, 2023 at approximately 10:30 p.m. Plaintiffs were patrons of Whatever Forever, located at 590 Fulton St, Brooklyn, NY 11217 and were lawfully present at said location.
9. At the aforesaid date, time, and place, Plaintiffs had not committed any crime nor was there any reasonable suspicion to believe that Plaintiffs had committed a crime.
10. At the aforesaid date, time, and place, Plaintiffs were violently assault by several other patrons of Whatever Forever, located at 590 Fulton St, Brooklyn, NY 11217 and were the victims of a crime.
11. At the aforementioned time, date, and place, Defendant City of New York, by and through its agents and employees including but not limited to P.O. Jeffrey Peloso unlawfully seized, searched, and falsely arrested Plaintiff Necrecia Fletcher for Assault in the third Degree, Menacing in the Second Degree, Attempted Assault in the Third Degree and Harassment in the Second Degree.
12. At the aforementioned time, date, and place, Defendant City of New York, by and through its agents and employees including but not limited to P.O. Jeffrey Peloso unlawfully seized, searched, and falsely arrested Plaintiff Linda Oluoch, for Assault in the third Degree, Menacing in the Second Degree, and assault with a weapon.

13. Upon information and belief, at the aforementioned time, date, and place, the City of New York by and through its agents and employees including but not limited to P.O. Jeffrey Peloso viewed and/or secured video footage from 590 Fulton St, Brooklyn, NY 11217, which demonstrated that the Plaintiffs did not engage in any criminal behavior and in fact, were victims of an assault and battery.
14. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiffs committed the aforesaid crimes, and any arguable probable cause to arrest the Plaintiffs had vitiated, based upon the aforesaid video surveillance.
15. Notwithstanding a lack of probable cause, Defendants arrested, confined and caused Plaintiffs to be deprived of their freedom and liberty, all without a cause, excuse, or justification and without Plaintiffs' consent.
16. Defendant P.O. Jeffrey Peloso's actions violated clearly established rights.
17. No reasonable officer in the position of P.O. Jeffrey Peloso would have believed the actions of the Defendants herein were objectively reasonable.
18. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiffs suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of their freedom.
19. The Defendants are jointly and severally liable to the harms caused to Plaintiffs.
20. Within ninety days after the occurrence complained of herein, Plaintiffs both served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New

York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

21. A statutory hearing has been held and all prerequisites to suit have been fulfilled.
22. The City of New York is vicariously liable for the acts and omissions of P.O. Jeffrey Peloso complained of herein, all of which were committed in the course and scope of employment based upon respondeat superior.
23. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

24. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
25. By making the aforesaid arrest of the Plaintiffs, without probable cause, justification and privilege, Defendants' actions violated the Plaintiffs' civil rights, including but not limited to his rights under the Fourth, Fourteenth and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.
26. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiffs suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.
27. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

**COUNT III: MALICIOUS PROSECUTION UNDER NEW YORK LAW
AS TO NECRECIA FLETCHER**

28. Plaintiff Necrecia Fletcher repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
29. On or about December 10, 2022, P.O. Jeffrey Peloso signed an against the Plaintiff which initiated a prosecution against the Plaintiff Necrecia Fletcher for Assault in the third Degree, Menacing in the Second Degree, Attempted Assault in the Third Degree and Harassment in the Second Degree.
30. Between December 10, 2023 and January 31, 2023, Defendants intentionally suppressed, failed to document and withheld from the District Attorney's office, information that there was video evidence which showed that the Plaintiff did not engage in any criminal activity and was in fact a victim.
31. At all times relevant, the aforesaid evidence, was exculpatory, (Hereinafter "the exculpatory evidence").
32. Defendants at all times relevant knew that the prosecutor's office was relying upon the Defendants to provide and forward a true and complete investigation file, which made a full and complete disclosure of the circumstances.
33. Defendant(s) created police investigatory reports which falsely implicated the Plaintiff in the aforementioned crimes, while simultaneously failed to document the exculpatory information or otherwise make it known to the prosecutor.
34. Defendants with knowledge that the prosecutor was relying upon their veracity and relying upon them to provide a full and complete statement of the facts, to determine whether to initiate and continue the prosecution, forwarded the aforesaid

police documents which failed to document the aforesaid exculpatory material which vitiated probable cause to believe that the Plaintiff had committed any such crime.

35. By and through the foregoing preparation of police paperwork, which failed to make a full and complete statement of the facts and the aforesaid suppression of the exculpatory evidence, Defendants initiated a prosecution against the Plaintiff Necrecia Fletcher for the aforesaid crimes.
36. At all times relevant herein, there was no probable cause to believe that Plaintiff Necrecia Fletcher had committed any of the crimes with which she was charged.
37. Defendant initiated and continued the prosecution by signing the aforesaid accusatory instrument.
38. Defendant continuously suppressed and withheld the exculpatory evidence, from the prosecutor, throughout the prosecution.
39. The exculpatory evidence at all times relevant herein vitiated probable cause to believe that the Plaintiff had committed the crimes for which she had been charged and Defendants at all times relevant herein, had a Brady, Rosario and Kyles duty to record and disclose same to the prosecutor.
40. The aforementioned misconduct and failure to make a full and complete disclosure of the facts prevented the prosecutor from exercising independent judgment.
41. As more fully set forth herein, all defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

42. By suppressing exculpatory evidence and by failing to make a full and complete disclosure of facts known by him to the prosecutor, Defendants continued the prosecution against the Plaintiff.
43. Defendants failed to advise the prosecutor or otherwise document facts which would have vitiated probable cause.
44. By and through the foregoing defendants breached their Brady, Kyles and Rosario duties.
45. At all times mentioned, herein defendants acted with malice in initiating and continuing the criminal proceedings against plaintiff.
46. The aforesaid charges were resolved in the Plaintiff's favor.
47. As a direct and proximate result of the foregoing acts committed by the defendants, the Plaintiff Necrecia Fletcher was deprived of her liberty and she was unjustly prosecuted.
48. Plaintiff Necrecia Fletcher suffered great humiliation, ridicule, and mental anguish, shock, mental trauma, emotional and mental suffering as a result of his unlawful prosecution and incarceration, was forced to incur substantial attorneys' fees in connection with her defense and caused to lose wages.

COUNT IV: MALICIOUS PROSECUTION UNDER 42 USC § 1983

49. Plaintiff Necrecia Fletcher repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
50. The aforementioned actions were done by Defendants with Malice and to frame Plaintiff for crimes which she did not commit and to deny him the rights and

privileges guaranteed by the U.S. Constitution and the Constitution of the State of New York.

51. Defendants continued criminal proceedings against plaintiff despite a lack of credible evidence against her, and notwithstanding their knowledge that said proceedings would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.
52. Defendants' actions violated the Plaintiff's civil rights including but not limited to her rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution including but not limited to the right to due process, the right not to be unreasonably seized, the right to a fair trial, right not to be prosecuted through the suppression of exculpatory evidence, the right not be arrested and imprisoned without probable cause, the right of confrontation, and defendants further maliciously prosecuted Plaintiff, denied her due process, denied her a fair trial, unreasonably seized the Plaintiff and violated her civil and constitutional rights.
53. Defendants' actions violated clearly established rights.
54. Defendants' action shocks the conscience.
55. No reasonable officer in the position of the defendants would have believed the actions of the defendants herein was objectively reasonable.
56. As a direct and proximate result of the foregoing acts committed by the defendants, the Plaintiff was deprived of her liberty and she was unjustly prosecuted, and was forced to endure harassment and humiliations caused by the prosecution complained of herein.
57. Plaintiff suffered great humiliation, ridicule, and mental anguish, shock, mental trauma, emotional and mental suffering as a result of his unlawful prosecution and incarceration,

was forced to incur substantial attorneys' fees in connection with her defense and caused to lose wages.

58. Defendants are jointly and severally liable for the damages sought herein.

COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

59. Plaintiffs repeat, reiterate, and reallege each and every allegation contained above with the same force and effect as if fully set forth herein at length

60. The foregoing events constitute violations of Plaintiffs' statutory and constitutional rights, thereby entitling them to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

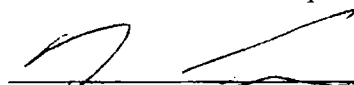
WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: New York, N.Y.
Friday, February 23, 2024

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY:



Michael H. Joseph, Esq.,
18 West 33rd Street, Suite 400
New York, NY 10001
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINDA OLUOCH AND NECRECIA FLETCHER,
Plaintiff(s),

Index No.:

-against-

CITY OF NEW YORK AND PO JEFFREY PELOSO,
Defendant(s).

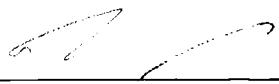
VERIFICATION

I, Michael H. Joseph, Esq. the undersigned, an attorney admitted to practice in the State of New York, state that I am a member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
February 27, 2024



Michael H. Joseph, Esq.